

CHAPTER 44.

An Act to provide for the establishment of a Ministry of Reconstruction, and to make provision as to the right of certain Ministers to sit in Parliament.

[21st August 1917.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Establishment
of the Ministry
of Reconstruction.

1. With a view to promoting the work of organisation and development after the termination of the present war, it shall be lawful for His Majesty to appoint a Minister of Reconstruction, who shall hold office during His Majesty's pleasure.

Powers and
duties of
Minister of
Reconstruction.

2.—(1) It shall be the duty of the Minister of Reconstruction to consider and advise upon the problems which may arise out of the present war and may have to be dealt with upon its termination, and for the purposes aforesaid to institute and conduct such inquiries, prepare such schemes, and make such recommendations as he thinks fit ; and the Minister of Reconstruction shall, for the purposes aforesaid, have such powers and duties of any Government Department or authority, which have been conferred by or under any statute, as His Majesty may by Order in Council authorise the Minister to exercise or perform concurrently with, or in consultation with, the Government Department or authority concerned.

(2) The Minister of Reconstruction shall in each year present to Parliament a report of such of the schemes prepared and recommendations made by him as he shall deem suitable for publication.

(3) Any Order in Council made for the purpose of this Act may be added to, varied, or revoked by a subsequent Order in Council.

(4) An Order in Council under this Act shall be laid before each House of Parliament forthwith, and, if an address is presented by either House within the next subsequent forty days on which that House shall have sat praying His Majesty that the Order may be annulled, His Majesty in Council may annul the Order, and it shall thenceforth be void but without prejudice to the validity of anything already done thereunder.

Staff, remuneration, and expenses.

3.—(1) The Minister of Reconstruction may appoint such secretaries, officers, and servants as the Minister may, with the sanction of the Treasury, determine.

(2) There shall be paid, out of moneys provided by Parliament, to the Minister of Reconstruction such annual salary not exceeding two thousand pounds, and to the secretaries, officers, and servants of the Ministry such salaries or remuneration as the Treasury may determine.

4.—(1) The Minister of Reconstruction may sue and be sued, and may for all purposes be described by that name. Style, seal, and proceedings of Minister of Reconstruction.

(2) The Minister shall have an official seal, which shall be officially and judicially noticed, and that seal shall be authenticated by the signature of the Minister, or of a secretary, or of some person authorised by the Minister to act on behalf of a secretary.

(3) Every document purporting to be an instrument issued by the Minister, and to be sealed with the seal of the Minister, authenticated in manner provided by this Act, or to be signed by a secretary or any person authorised by the Minister to act on behalf of a secretary, shall be received in evidence, and be deemed to be such an instrument without further proof, unless the contrary is shown.

(4) A certificate signed by the Minister that any instrument purporting to be made or issued by him is so made or issued shall be conclusive evidence of the fact.

(5) The Documentary Evidence Act, 1868, as amended by the Documentary Evidence Act, 1882, shall apply to the Minister of Reconstruction as if that Minister were mentioned in the first column of the schedule to the first-mentioned Act, and as if the Minister, or a secretary of the Ministry, or any person authorised by the Minister to act on his behalf, was mentioned in the second column of that schedule. 31 & 32 Vict. c. 37.
45 & 46 Vict. c. 9.

5.—(1) The office of Minister of Reconstruction shall not render the person holding it incapable of being elected to, or of voting in, the Commons House of Parliament, and shall be deemed to be an office included in Schedule H. of the Representation of the People Act, 1867; in Schedule H. of the Representation of the People (Scotland) Act, 1868; in Schedule E. of the Representation of the People (Ireland) Act, 1868; and in Part I. of the schedule of the Promissory Oaths Act, 1868. Power for Minister and a secretary to sit in Parliament.
30 & 31 Vict. c. 102.
31 & 32 Vict. c. 48.
31 & 32 Vict. c. 49.
31 & 32 Vict. c. 72.

(2) The person who is first appointed to be Minister of Reconstruction shall not by reason of such appointment, if a member of the Commons House of Parliament, vacate his seat as such member.

6. The office of Minister of Reconstruction shall cease to exist on the termination of a period of two years after the conclusion of the present war or such earlier date as may be fixed by His Majesty in Council, and then any appointments made under the powers conferred by this Act shall be determined. Cessation of Ministry of Reconstruction.

7. Where, before the passing of this Act, a member of His Majesty's Privy Council has been appointed to be a Minister of the Crown at a salary without any other office being assigned to him, he shall not by reason thereof be deemed to have been or to be incapable of being elected to or of voting in the Commons House of Parliament, and shall not, if at the time Right of certain Ministers to sit in Parliament.

of his appointment he was a member of that House, be deemed to have vacated his seat.

Short title.

8. This Act may be cited as the New Ministries Act, 1917.

CHAPTER 45.

An Act to extend and amend the Munitions of War Acts, 1915 and 1916. [21st August 1917.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Power to give directions as to remuneration of certain classes of work.

1.—(1) If at any time during the continuance of the present war the Minister of Munitions considers it necessary, in order to maintain the output of munitions, that directions should be given with respect to the remuneration to be paid for work (being munitions work or work in connection therewith or work in any controlled establishment), which at the time when the directions are given is paid at time rates, he may, subject always and without prejudice to any agreement made between employers and workmen with the consent of the Minister with respect to the remuneration of such work, by order give such directions with respect to the remuneration of such work as he may consider necessary for the purpose of the maintenance or increase of output.

5 & 6 Geo. 5.
c. 54.

(2) Any contravention of or non-compliance with any such directions shall be punishable in like manner as if the order in which the directions are contained was an award made in settlement of a difference under Part I. of the Munitions of War Act, 1915, but where a difference has arisen respecting matters on which the Minister of Munitions has given directions under this section the difference shall be referred to a special arbitration tribunal constituted under section eight of the Munitions of War (Amendment) Act, 1916.

5 & 6 Geo. 5.
c. 99.

(3) Any directions given under this section may be varied from time to time, but shall not continue in force after the termination of the present war.

Restriction on employment of workmen who have been engaged on certain munition work.

2. The Minister of Munitions, on being satisfied that the provisions of section seven of the Munitions of War Act, 1915, as amended by any subsequent enactment, can consistently with the national interests be repealed, may by order repeal those provisions, and thereupon the following provisions shall have effect in lieu thereof :—

(1) It shall not be lawful for a person without the consent of the Minister of Munitions to give employment to a workman who has, since the passing of this Act, been employed—